

Multiple Choice (10 marks)

1. A man is charged with murder. During the trial, defense counsel offers the testimony of a man on death row admitting he hired another man to shoot the victim. The testimony is
 - (a) not hearsay.
 - (b) hearsay, but admissible as an admission.
 - (c) hearsay, but admissible as a dying declaration.
 - (d) hearsay not within any recognized exception.
2. What kind of damages put the nonbreaching party into as good a position as if the other party had fully performed?
 - (a) Nominal
 - (b) Punitive
 - (c) Rescission
 - (d) Compensatory
3. If a regulation does amount to a taking, then what must the government do?
 - (a) Pay just compensation for the property
 - (b) Terminate the regulation and pay damages that occurred while regulation was in effect
 - (c) Pay double damages if not addressed in 30 days.
 - (d) a or b
4. Which of the following types of regulations would not be reviewed under the strict scrutiny standard of review?
 - (a) Gender
 - (b) Interstate travel
 - (c) Privacy
 - (d) Alienage
5. A defendant charged with first-degree murder shall be furnished with a list containing names and addresses of all prospective jurors
 - (a) upon court order.
 - (b) upon request.
 - (c) upon request and showing of good cause.
 - (d) under no circumstances.

True / False (10 marks)

Answer True or False

6. True or False: An indigent person does not have the Sixth Amendment right to counsel during investigative surveillance.
7. True or False: Contracts for crops and timber to be severed are classified under the Uniform Commercial Code (UCC).
8. True or False: The Rule in Shelley's Case allows a remainder in the grantor's heirs to remain valid, preventing reversion to the grantor.
9. True or False: Common law burglary does not require that the crime occur during the daytime.
10. True or False: The necessary and proper power alone cannot serve as a basis for enacting federal law without another enumerated power.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the various exceptions to the warrant requirement in constitutional law, specifically analyzing the implications of cold pursuit as a non-exception.
12. Discuss the legal status of a jogger who enters a convenience store to use the bathroom during a run. Analyze the implications of this status within the context of property rights and public access.

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